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Case Number: 25SMCV01613 Hearing Date: September 1, 2026 Dept: M

CASE NAME: Simon, v. Farmers Insurance Group, Inc., et al.

CASE NO.: 25SMCV01613

MOTION: Demurrer and Motion to Strike the First Amended Complaint

HEARING DATE: 9/1/2026

LEGAL STANDARD

A demurrer for

sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

A special demurrer for

uncertainty is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (CCP § 430.10(f); *Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, “ambiguities can be clarified under modern discovery procedures.” (Ibid.)

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (CCP § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP §§ 436(a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show, in what manner, plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (Id.)

ANALYSIS

Defendant Copart demurs and moves to strike Plaintiff Rebecca Simon's First Amended Complaint (“FAC”). Defendant demurs to the causes of action for intentional interference with contractual relations, negligence, civil conspiracy, and violations of the Unfair Competition Law. Defendant also moves to strike the supporting allegations for the claim of punitive damages.

Objections

Plaintiff objects to the motions' failure to comply with California Rules of Court (“CRC”) rules 3.1222

and 3.1320. The Court concurs that Copart's motions lack a table of contents and a table of authorities, and improperly combined two motions into a single document. While the Court does not find that this would be grounds to consider the motions to be late under CRC Rule 3.1113(g), the court will decline to consider the merits of the motion to strike. The Court will only consider the merits of the demurrer.

Intentional

Interference with Contractual Relations

To prevail on a cause

of action for intentional interference with contractual relations, a plaintiff must plead and prove (1) the existence of a valid contract between the plaintiff and a third party; (2) the defendant's knowledge of that contract; (3) the defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage. (Pacific Gas & Electric Co. v. Bear Stearns & Co. (1990) 50 Cal.3d 1118, 1126.)

"Intent" in this context does not refer to specific intent, rather a plaintiff must "plead that the defendant '[knew] that the interference is certain or substantially certain to occur as a result of his action.'" (Korea Supply Co. v. Lockheed Martin Corp. (2003) 29 Cal.4th 1134, 1157.) There is no cause for negligent interference with contractual relations. (Davis v. Nadrich (2009) 174 Cal. App. 4th 1, 9.)

Following

the other defendants declaring Plaintiff's vehicle a total loss, the FAC alleges that they transferred the vehicle from a repair shop to Copart's storage facility. (FAC ¶ 23.) Copart's facility was a decrepit, run-down lot wholly unsuitable for the storage of vehicles. (Id.) While the Vehicle was in Copart's custody, the Vehicle was stored with the windows left open and exposed to the harsh outdoor elements. (FAC ¶ 24.) As a direct result of Copart's negligent storage practices, the Vehicle accumulated substantial (e.g., filth, debris, dust and dead animals), and sustained further physical damage in the form of dents and scrapes to the exterior. (FAC ¶¶ 24, 63.) As a result, the Vehicle, which carries significant sentimental value, incurred an additional \$23,923.09 in damages. (FAC ¶¶ 64-65.) Copart knew of Plaintiff's contract with the Zurich Defendants, i.e., the insurance contract. (FAC ¶ 102.) The FAC concludes that Copart's acts or omissions interfered with or prevented performance of that contract and made such performance more difficult and more expensive. (FAC ¶ 103.)

Copart allegedly knew with a high degree of certainty that their acts and omissions would disrupt the performance of the insurance contract. (FAC ¶ 104.)

The

FAC fails to allege that Copart's acts were designed to induce the alleged breach or disruption of the insurance contracts at issue. At most, the specific facts alleged show Copart's negligent storage of the Vehicle. The admittedly negligent conduct could not support an intentional interference claim. Further, a defendant's conduct must make the performance of the contract more expensive or burdensome for the plaintiff. (See *Pacific Gas & Elec. Co.*, supra, 50 Cal.3d at 1127, 1129, 1137 [inducing a third party to bring litigation is not a basis for liability and must meet the elements of malicious prosecution].) Plaintiff does not allege such an increased burden under the insurance contract. Moreover, while Copart's negligent conduct caused substantial additional damages to the Vehicle, such damages could not have caused a disruption to the insurance contract or caused Plaintiff's performance to be more expensive under the pled facts. The vehicle storage damages do not logically connect with the purported disruption of the insurance claim. At the point that the vehicle sustained damages at Copart's facility, the Zurich Defendants already declared the vehicle a total loss. Given that prior, independent determination, the Zurich Defendants would only be paying the ACV (even if that determination was in bad faith), regardless of the additional damages.

Plaintiff

does not address this cause of action in opposition.

Accordingly, the
demurrer is SUSTAINED without leave to amend.

Negligence

To plead a cause of
action for negligence, one must allege (1) a legal duty owed to plaintiffs to use due care; (2) breach of duty; (3) causation; and (4) damage to plaintiff. (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal. App. 4th 292, 318.) "In order to state a cause of action for negligence, the complaint must allege facts sufficient to show a legal duty on the part of the defendant to use due care, a breach of such legal duty, and the breach as the proximate or legal cause of the resulting injury." (*Bellah v. Greenston* (1978) 81 Cal.App.3d 614, 619.) Negligence may be pleaded in general terms. (*Landeros*

v. Flood (1976) 17 Cal.3d 399, 407-408.)

The FAC alleges a

bailment relationship between Copart and Plaintiff. A

bailment is the deposit of personal property with another, usually for a particular purpose, under an express or implied contract. (H. S. Crocker Co.

v. McFaddin, (1957) 148 Cal. App. 2d 639, 644.) A voluntary bailment is made by consensually giving to another the possession of personal property to keep for the benefit of the owner or a third party. (Civ. Code § 1814.) A bailee generally has the duty to return the property in the same condition it was received and is responsible for damages for any injury to the bailed property resulting from a failure to exercise a proper degree of care in protecting it. (Hall v. Osell (1951) 102 Cal. App. 2d 849; 8 C.J.S.

Bailments § 122.) A breach of bailment sounds in tort and contract. (Id.)

The FAC alleges that Copart negligently

stored the vehicle, causing damages to the vehicle. (FAC ¶¶ 23-24, 116-118.) This includes “further” damages, apart from the original damages sustained in the hit and run collision. (Id.) The FAC thus alleges that Copart breached the duty of a bailee.

Copart

argues that liability of a depositary for negligence cannot exceed the amount which the depositary is informed by the depositor, or has reason to suppose the thing deposited to be worth. (Civ. Code § 1840.) While this principal ultimately limits the extent of recoverable damages, the FAC does not reveal facts which would show that section 1840 would cut off all damages alleged here.

Accordingly, the demurrer is OVERRULED as to this cause of action.

Conspiracy

Conspiracy is not a cause of action, but

a theory of liability. (Moran v. Endres (2006) 135 Cal.App.4th 952, 954-55.) “Although conspiracy to commit a tort is not a separate cause of action from the tort itself, alleging a conspiracy fastens liability on those who agree to the plan to commit the wrong as well as those who actually carry it out.” (Stueve Bros. Farms, LLC v. Berger Kahn (2013) 222 Cal.App.4th 303, 323.)

“To

allege a conspiracy, a plaintiff must plead: ‘(1) formation and operation of the conspiracy and (2) damage resulting to plaintiff (3) from a wrongful act done in furtherance of the common design.’ [Citation.]” (Daniels v. Select Portfolio Servicing, Inc., (2016) 246 Cal.App.4th 1150, 1173.) “It is not enough that the [conspirators] knew of an intended wrongful act, they must agree—expressly or tacitly—to achieve it.” (AREI II Cases, (2013) 216 Cal.App.4th 1004, 1022.) A conspirator’s agreement to the conspiracy “may be inferred from the character of the acts done, the relations of the parties, the interest of the alleged conspirators, and other circumstances.” (Id. at 1024.) “[A] complaint is sufficient if it apprises the defendant of the ‘character and type of facts and circumstances upon which she was relying to establish the conspiracy.’ [Citation.]” (Id. at 1022.)

The FAC fails to allege

conspiracy liability between Copart and the other defendants. The FAC only alleges a bare conclusion that Defendants “formed and operated multiple conspiracies, engaged in numerous acts of wrongful conduct in furtherance of those conspiracies, and as a result, [Plaintiff] was damaged from that proscribed conduct through, inter alia, the loss of or diminishment of value of all or part of her Vehicle; the value of services she paid for but were not provided; the costs of repairing the damages done” (FAC ¶ 143.) At most, the more specific allegations of conspiracy demonstrate a conspiracy between the Zurich Defendants and CCC. (See, e.g., FAC ¶¶ 26-54 [re: claims handling and valuing the vehicle]; ¶¶ 55-59 [re: selection of autobody repair facility].) These paragraphs do not state a single specific act by Copart in furtherance of the conspiracy; do not expressly or implicitly allege that Copart agreed, expressly or tacitly, to achieve the ends of any conspiracy; and do not show Copart even knew of any planned tort. The FAC does not even give Copart notice of which torts are at issue for conspiracy liability. Therefore, the FAC fails to apprise Copart of the nature and circumstances of the conspiracy theory alleged against it.

Accordingly, the

demurrer is SUSTAINED. Leave to amend will only be granted for Plaintiff to add facts concerning the operation of a conspiracy between Copart and the other defendants concerning a specific tort, but not for a standalone cause of action for conspiracy.

UCL

Business

and Professions Code section 17200 prohibits “any unlawful, unfair or fraudulent business act or practice.” (Bus. & Prof. Code § 17200.) “An unlawful business practice or act is an act or practice, committed pursuant to business activity, that is at the same time forbidden by law.” (Klein v. Earth Elements, Inc. (1997) 59 Cal.App.4th 965, 969.) “A business practice is unfair within the meaning of the UCL if it violates established public policy or if it is immoral, unethical, oppressive or unscrupulous and causes injury to consumers which outweighs its benefits.” (McKell v. Washington Mutual, Inc. (2006) 142 Cal.App.4th 1457, 1473.) To establish a fraudulent practice under the UCL, the plaintiff must show that members of the public are likely to be deceived. (West v. JPMorgan Chase Bank, N.A. (2013) 214 Cal.App.4th 780, 806; see Morgan v. AT&T Wireless Services, Inc. (2009) 177 Cal.App.4th 1235, 1256 [fraud prong of the UCL is less rigorous than common law fraud as common law fraud requires allegations of actual falsity and reasonable reliance while fraud under UCL does not].)

Copart

asserts that mere negligent storage of a vehicle does not establish a violation of the UCL. However, the FAC alleges the basic elements of a UCL violation against Copart. (FAC ¶¶ 149-153.) More specifically, the FAC alleges that Copart maintains a business practice (improper storage of vehicles) which violates an identifiable law (Civ. Code §§ 1813 et seq.). (FAC ¶¶ 24-25, 60-64.)

Accordingly, the demurrer is OVERRULED as to the UCL cause of action.

Plaintiff has 20 days to file an amended complaint.